

25PDUD03720 25PDUD03720

County: los-angeles

Division: Civil Law and Motion

Department: V

Hearing date: 2026-08-05

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Case Number: 25PDUD03720 Hearing Date: August 5, 2026 Dept: V

Superior Court of California

County of Los Angeles – NORTHEAST District

Department

V

MARK HATHAWAY,

Plaintiff,

vs.

CHARLES WHITE,

Defendant.

Case

No.:

25PDUD03720

Hearing

Date:

August

5, 2026

Time:

8:30 a.m.

[Tentative]

Order RE: MOTION TO ENFORCE THE STIPULATED JUDGMENT BY ENTERING
JUDGMENT FOR MONEY

MOVING PARTY: Plaintiff Mark Hathaway

RESPONDING PARTY: None.

The Court

considered the moving papers filed in connection with the instant motion.

BACKGROUND

On December 26, 2025,
Plaintiff Mark Hathaway ("Plaintiff") filed this unlawful detainer action
against Defendant Charles White ("Defendant").

On April 28, 2026, the
parties lodged notice of a joint stipulation and judgment with the Court.

On June 25, 2026,
Plaintiff filed the instant motion to enforce the stipulated judgment.

As of July 29, 2026,
Defendant has not filed an opposition.

LEGAL STANDARD

"If parties to pending litigation
stipulate, in a writing signed by the parties outside of the presence of the
court or orally before the court, for settlement of the case, or part thereof,
the court, upon motion, may enter judgment pursuant to the terms of the
settlement. If the parties to the settlement agreement or their counsel
stipulate in writing or orally before the court, the court may dismiss the case
as to the settling parties without prejudice and retain jurisdiction over the
parties to enforce the settlement until performance in full of the terms of the

settlement.” (Code Civ. Proc., § 664.6, subd. (a).)

A 664.6 motion to enforce a settlement involves (1) examining if there is an enforceable settlement, (2) interpreting the settlement terms, and (3) determining the rights of the parties. (Estate of Jones (2022) 82 Cal.App.5th 948, 952.) In a motion to enforce a settlement agreement, the Court may interpret the settlement terms and conditions, but it cannot impose terms to which the parties did not agree. (Ibid.) Strict compliance with the statutory requirements is necessary before a court can enforce a settlement agreement under this statute. (Sully-Miller Contracting Co. v. Gledson/Cashman Construction, Inc. (2002) 103 Cal.App.4th 30, 37.) Thus, to enforce a written settlement agreement under Code of Civil Procedure section 664.6, the following three elements must be met: (1) the parties must have come to a meeting of the minds on all material points; (2) there must be a writing that contains the material terms of the agreement; and (3) the writing must be signed by the parties. (Weddington Productions, Inc. v. Flick (1998) 60 Cal.App.4th 793, 797-98.) “Although a judge hearing a section 664.6 motion may receive evidence, determine disputed facts, and enter the terms of a settlement agreement as a judgment, nothing in section 664.6 authorizes a judge to create the material terms of a settlement, as opposed to deciding what terms the parties themselves have previously agreed upon.” (Id. at p. 810 [internal citations omitted, emphasis in original].)

DISCUSSION

Plaintiff

requests entry of judgment against Defendant in the amount of \$57,439.34. Under Code of Civil Procedure section 664.6, subdivision (a), the Court may enter judgment pursuant to the terms of the settlement.

Here,

the Unlawful Detainer Stipulated Judgment (the “Agreement”) included the following terms:

(1) Defendant

agreed to vacate the property by May 16, 2026;

(2) Defendant

agreed to remove all personal property and all persons;

(3) Defendant

agreed to leave the premises without any malicious damage;

(4) Defendant

agreed to dismiss LASC Case No. 24NNCV0424 with prejudice within 7 days of the Stipulated Judgment agreement, no later than May 5, 2026;

(5) Plaintiff

agreed to pay Defendant \$20,000.00 in relocation assistance, by cashier's check payable to Defendant, to be sent by certified mail to the Defendant's attorney no later than May 5, 2026.

(Hathaway Decl., ¶ 4, Exh. 1.)

The Agreement is signed by both Plaintiff and Defendant. (Hathaway Decl., Exh. 1.) Plaintiff sent a cashier's check for \$20,000.00 to Defendant's counsel on April 30, 2026, for the relocation assistance. (Hathaway Decl., ¶ 5, Exhs. 2-3.) However, Defendant did not dismiss the lawsuit until May 18, 2026. (Hathaway Decl., ¶ 6, Exh. 4.) Defendant vacated the property without notice before May 16, 2026, without removing all personal property. (Hathaway Decl., ¶ 6.) Further, Defendant damaged the property significantly. (Hathaway Decl., ¶ 7.) Defendant's damage included smearing the walls, windows, and floors with rotten food and stains, smearing peanut butter into stair railings, banisters, and an electrical breaker panel, gluing shut the freezer and sliding doors, ripping open custom cushions, and removing the built-in kitchen television. (Hathaway Decl., ¶¶ 8-10, 13-18, Exh. 5.) Defendant also blocked the property's roof drains, causing water leaks into the property. (Hathaway Decl., ¶ 19.) Plaintiff spent \$19,840.43 to remediate the property, exclusive of repairs and mold remediation caused by the blocked roof drains. (Hathaway Decl., ¶ 20.)

The

Court finds that the statutory requirements of Code of Civil Procedure section 664.6 are met. Plaintiff introduces the Agreement, signed by both parties, demonstrating the parties' meeting of the minds. Defendant has not filed an opposition arguing otherwise. "A failure to oppose a motion may be deemed a consent to the granting of a motion." (Cal. Rules of Court, rule 8.54(c).) Further, Plaintiff demonstrates that he paid the relocation assistance required

of him pursuant to the Agreement, while Defendant did not timely dismiss this action and remove all personal property. Notably, Defendant left considerable, malicious damages.

Plaintiff

requests the Court enter a monetary judgment in the amount of \$57,439.34. The total cost to remediate Defendant's extensive damage was \$19,840.43. (Hathaway Decl., ¶ 20.) Plaintiff attaches invoices, receipts, and Chase banking statements reflecting the individual costs for junk removal, professional cleaning services, sliding door repair, and carpet and wood floor replacements. (Hathaway Decl., Exhs. 6-9.) Plaintiff also requests the Court award past-due rent in the amount of \$6,794.91 and holdover damages in the amount of \$30,804.00.

The Agreement expressly states,

"Defendant agrees to leave the premises without any malicious damages."

(Hathaway Decl., Exh. 1.) The Agreement also states that Plaintiff and Defendant have "notice and opportunity to be heard on the issue of any... alleged violation of the conditions of staying the enforcement of the judgment. We give up these rights and freely agree that judgment may be entered against us in accordance with this stipulation." (Hathaway Decl., Exh. 1.) The Court finds that Defendant's malicious damages are a violation of the Agreement, warranting monetary sanctions and entry of judgment. However, the Agreement expressly provides that past due rent and holdover damages are not included. (See Hathaway Decl., Exh. 1.) Thus, the Court will not award the past-due rent in the amount of \$6,794.91 and holdover damages in the amount of \$30,804.00.

Therefore, the Court grants

Plaintiff's motion to enforce settlement and enters a monetary judgment in the reduced amount of \$19,840.43 for cleanup, removal, and property damage.

CONCLUSION

Based on the foregoing, the Court GRANTS Plaintiff Mark Hathaway's motion to enforce the stipulated judgment.

The Court enters a monetary judgment against Defendant in the reduced amount of \$19,840.43, payable to Plaintiff's counsel of record within twenty (20) days of this order.

Moving party is ordered to give notice of this ruling.

IT IS SO ORDERED.

DATED: August 5, 2026

Sarah
J. Heidel

Judge
of the Superior Court